
CITY OF GALLATIN COUNCIL MEETING

February 02, 2021

6:00 pm

Electronic Meeting

Pursuant to Governor Lee's Executive Orders No. 16 and subsequent orders, and the need to limit the community spread of COVID-19, the February 02, 2021 Gallatin City Council Meeting will be held by electronic means. The meeting will be live-streamed to protect the public health, safety and welfare of the Council and citizens of Gallatin. Join the Zoom Meeting at <https://us02web.zoom.us/j/86203578425>, dial +1 470 381 2552 or +1 470 250 9358, and enter Webinar ID: 862 0357 8425.

- Call to Order – Mayor Brown
- Invocation
- Roll Call: Alexander – Fann – Vice Mayor Fennell– George – Hayes – Love – Overton
- Approval of Minutes: January 19, 2021 City Council Electronic Meeting
- Public Recognition on Agenda-Related Items
- Mayor's Comments

AGENDA

1. **Second Reading Ordinance No. O21012-53** An ordinance of the City of Gallatin, Sumner County, Tennessee amending Article 12, Supplementary District Regulations, Section 12.01 Regulations Applicable for All District Regulations, Section 12.01.020 Fences, Walls and Hedges of the Gallatin Zoning Ordinance; repealing conflicting ordinances; providing for severability, and providing for an effective date **(Vice Mayor Fennell)**
2. **Second Reading Ordinance No. O21011-1** Ordinance appropriating funds for completion of infrastructure improvements in the Home Depot Subdivision **(Councilman Overton)**
3. **First Reading Ordinance No. O21011-2** Ordinance appropriating funds from 2021 General Obligation Bond Issue in the amount of \$11,112,853.25 and \$700,000 from General Fund for capital projects **(Councilwoman Love)**
4. **First Reading Ordinance No. O2102-3** Ordinance appropriating \$127,769 from Project Woolhawk for Building Codes Department expenses **(Councilman Alexander)**
5. **First Reading Ordinance No. O2102-4** An ordinance amending Gallatin Municipal Code Chapter 5, Buildings and Building Regulations, Article XIV, Fences **(Councilman Fann)**
6. **Resolution No. R2102-11** Resolution to authorize the Gallatin Fire Department to apply for the Assistance to Firefighters (AFG) Grant **(Councilwoman George)**

- Other Business
- Public Recognition on Non-Agenda-Related Items
- Adjourn

The City of Gallatin City Council Electronic Meeting

Tuesday, January 19, 2021

Mayor Paige Brown called the meeting to order at 6:06 P.M.

Pursuant to Tennessee Governor Bill Lee's Executive Orders #16 and subsequent orders, and the need to limit the community spread of COVID-19, the January 19, 2021 Gallatin City Council Meeting was held by electronic means. The meeting was live-streamed to protect the public health, safety and welfare of the Council and citizens of Gallatin. Instructions for public participation in the meetings were available on the City's website.

Councilman Overton made motion to allow the meeting electronically; Councilman Alexander seconded.

Mayor Brown requested a roll call vote to allow the meeting electronically and a roll call of those present.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Shawn Fennell	Yes/Present
Councilman John D. Alexander	Yes/Present
Councilman Steve Fann	Yes/Present
Councilwoman Eileen George	Yes/Present
Councilman Craig Hayes	Yes/Present
Councilwoman Lynda Love	Yes/Present
Councilman Jimmy Overton	Yes/Present

Motion passed with 7 ayes and 0 nays.

City Engineer Nick Tuttle led the opening prayer.

Department Heads and Others Present:

Bill McCord, City Planner	Jeff Hentschel, Communications Director
Chuck Stuart, Building Official	Lori Smiley, I.T. Director
Connie Flood, H.R. Director	Nick Tuttle, City Engineer
Connie Kittrell, City Recorder	Rachel Nichols, Finance Director
David Brown, Parks & Rec. Director	Robert Richie, Assistant Fire Chief
David Kellogg, Public Utilities Director	Susan High-McAuley, City Attorney
Don Bandy, Police Chief	Zach Wilkinson, Public Works Superintendent
James Fenton, EDA Director	

Approval of Minutes

Mayor presented the December 15, 2020 Special-Called City Council Minutes and the January 5, 2021 City Council Minutes for approval.

Councilman Hayes made motion to approve; Vice Mayor Fennell seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

Public Recognition on Agenda-Related Items

Mayor Brown opened public recognition on agenda-related items.

Mayor made an agenda change to move Item #3 to Item #2 as a public hearing without objection.

Communications Director Jeff Hentschel called upon those wishing to speak.

With no one wishing to speak public recognition was closed.

Mayor's Comments

- Mayor welcomed Public Utilities Superintendent David Kellogg to his first official meeting.
- Mayor acknowledged the Martin Luther King Jr. Unity Car Parade and thanked everyone for their help.

Agenda

1. Resolution #R2101-3 - Public Hearing

Councilman Overton presented this resolution adopting and recommending to the Sumner County Coordinating Committee an amendment to the City of Gallatin Urban Boundary of the Growth Plan for Sumner County ratified by the Gallatin City Council pursuant to Public Chapter 1101, Acts of 1998.

Communications Director Jeff Hentschel called upon those wishing to speak.

- Michelle Jouvence of 1335 Long Hollow Pike spoke in opposition of the urban growth boundary.

With no one else wishing to speak public recognition was closed.

2. Ordinance #O2012-53 - Public Hearing

Vice Mayor Fennell presented this ordinance of the City of Gallatin, Sumner County, Tennessee amending Article 12, Supplementary District Regulations, Section 12.01 Regulations Applicable for All District Regulations, Section 12.01.020 Fences, Walls and Hedges of the Gallatin Zoning Ordinance; repealing conflicting ordinances; providing for severability, and providing for an effective date.

Vice Mayor Fennell asked to make an amendment to ordinance.

Communications Director Jeff Hentschel called upon those wishing to speak.

- Even Appleton of 850 Hardin Street spoke about traffic lights, Mayor asked Mrs. Appleton to comment under non-agenda related items.

With no one else wishing to speak public recognition was closed.

3. Resolution #R2101-3

Councilman Overton presented this resolution adopting and recommending to the Sumner County Coordinating Committee an amendment to the City of Gallatin Urban Boundary of the Growth Plan for Sumner County ratified by the Gallatin City Council pursuant to Public Chapter 1101, Acts of 1998.

Councilman Overton made motion to approve; Councilman Alexander seconded.

City Planner Bill McCord explained the process with the county.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

4. Ordinance #O2012-55 – Second Reading

Councilwoman Love presented this ordinance appropriating \$52,264 for the use and benefit of the City of Gallatin in support of the Town Creek Tributary Watershed Study.

Councilwoman Love made motion to approve; Councilman Alexander seconded.

Council discussed.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes

Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

5. Ordinance #O2101-1 - First Reading

Councilman Overton presented this ordinance appropriating funds for completion of infrastructure improvements in the Home Depot Subdivision.

Councilman Overton made motion to approve; Councilman Hayes seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

6. Resolution #R2101-1

Councilman Alexander presented this resolution authorizing the Mayor to sign Contract "720", 2020 with Infinity Pipeline, Inc.

Councilman Alexander made motion to approve; Councilman Overton seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes

Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

7. Resolution #R2101-2

Councilwoman George presented this resolution authorizing the Mayor to sign Contract "820", 2020 with Cleary Construction, Inc.

Councilwoman George made motion to approve; Councilman Alexander seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

8. Resolution #R2101-5

Councilman Hayes presented this resolution re-appointing Len Assante to the Gallatin Industrial Development Board.

Councilman Hayes made motion to approve; Councilman Alexander seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

9. Resolution #R2101-6

Vice Mayor Fennell presented this resolution re-appointing Larry Wise to the Gallatin Industrial Development Board.

Vice Mayor Fennell made motion to approve; Councilman Fann seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

10. Resolution #R2101-7

Councilwoman Love presented this resolution re-appointing Len Assante to the Gallatin Health Educational Housing and Facilities Board.

Councilwoman Love made motion to approve; Vice Mayor Fennell seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

11. Resolution #R2101-8

Councilman Alexander presented this resolution re-appointing Larry Wise to the Gallatin Health Educational Housing and Facilities Board.

Councilman Alexander made motion to approve; Councilwoman George seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

12. Resolution #R2101-9

Councilman Fann presented this resolution approving an Indemnity and Hold Harmless Agreement with a Certificate of Liability Insurance to use city-maintained right-of-way (once constructed and accepted by the City) of Duvall Drive, Becks Place, and Sperling Drive in the Cumberland Point Subdivision for the installation and maintenance of street trees.

Councilman Fann made motion to approve; Councilwoman Love seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

13. Resolution #R2101-10

Councilman Hayes presented this resolution appointing Beth Bennett to the Gallatin Electric Power Board.

Councilman Hayes made motion to approve; Vice Mayor Fennell seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

Other Business

Mayor opened other business.

With no one wishing to speak other business was closed.

Public Recognition on Non-Agenda-Related Items

Mayor opened public recognition on non-agenda-related items.

Communications Director Jeff Hentschel called upon those wishing to speak.

- Michelle Jouvence of 1335 Long Hollow Pike gave update on the intersection of Long Hollow Pike and Harris Lane.
- Rene Saunders of 2092 Rodman Boulevard asked what the city was doing to help the homeless in Gallatin.
- Even Appleton of 850 Hardin Street spoke about adding a traffic light at the intersection of Cairo Road and Airport Road.

Mayor explained the TDOT process for traffic lights.

Mayor stated protocol on how city supports non-profits in the community and how the Gallatin Police Department helps the homeless.

There was much discussion.

With no one else wishing to speak public recognition on non-agenda-related items was closed.

Adjourn

Vice Mayor Fennell made motion to adjourn; Councilwoman Love seconded.

Mayor adjourned the meeting at 7:04 P.M. without objection.

Mayor Paige Brown

City Recorder Connie Kittrell

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, AMENDING ARTICLE 12, SUPPLEMENTARY DISTRICT REGULATIONS, SECTION 12.01 REGULATIONS APPLICABLE FOR ALL DISTRICT REGULATIONS, SECTION 12.01.020 FENCES, WALLS AND HEDGES OF THE GALLATIN ZONING ORDINANCE; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE (ZONE 2020-0019)

WHEREAS, the Gallatin Municipal-Regional Planning Commission, pursuant to Section 15.07.040 of the Gallatin Zoning Ordinance has reviewed and recommended approval in GMRPC Resolution No. 2020-157 ; and

WHEREAS, notice and public hearing before the Gallatin City Council has or will occur before final passage pursuant to Section 15.07.060 of the Gallatin Zoning Ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE as follows:

1. The Gallatin City Council hereby concurs with the recommendations of the Gallatin Municipal-Regional Planning Commission and hereby approves amending Article 12, Section 12.01, Regulations Applicable to All Districts, Section 12.01.0220, Fences, Walls and Hedges, Gallatin Zoning Ordinance as described in Exhibit 'A'; and
2. Based upon the recommendation of approval by the Gallatin Municipal-Regional Planning Commission and after public notice and public hearing in compliance with Section 15.07.060 of the Gallatin Zoning Ordinance, the architectural design requirements are hereby amended and established as described in Exhibit 'A'; and
3. The Gallatin City Council does hereby approve, authorize and direct the revision of the Gallatin Zoning Ordinance in accordance with Section 15.07.080 of the Gallatin Zoning Ordinance of the City of Gallatin, Tennessee, shall, upon the effective date of this ordinance, be amended to reflect the amended text; and
4. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict; and
5. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provision or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect upon final passage, the public welfare requiring such.

PASSED FIRST READING: January 5, 2021

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A'

ARTICLE 12.00 SUPPLEMENTARY DISTRICT REGULATIONS

12.01 Regulations Applicable to All Districts

The following supplemental regulations shall apply to specified districts.

12.01.020 Fences, Walls, and Hedges

Notwithstanding other provisions of this Ordinance, fences, walls, and hedges may be permitted in any required yard or along the edge of any yard as follows:

- A. Fences, walls, and hedges must comply with Section 12.01.010, Visibility at Intersections.
- B. No fence or wall shall be installed so as to block or divert a natural drainage flow on to or off of any other land.
- C. Appearance – Fences and walls shall comply with the following standards:
 - 1. Customary Materials – Fences and walls shall be constructed of materials customarily used and manufactured as common fence or wall materials, including solid wood, brick, masonry, stone, chain link, wrought iron, decorative metal materials, or products designed to resemble these materials. Chain link fencing approved as part of a Site Plan or Final Master Development Plan shall be vinyl coated and colored dark green, brown or black. Low voltage, invisible fences with buried lines are excluded from this requirement.
 - 2. Prohibited Materials – Fences and walls constructed of debris, junk, rolled plastic, sheet metal, plywood, or other waste materials are prohibited in all zone districts, unless such materials have been recycled and reprocessed into building materials marketed to the general public and designed for use as fencing or wall materials. No electrified or barbed wire fence shall be permitted except in Agricultural-Residential zoned properties or property used primarily for agricultural purposes and for public institutions. Public Institutions may also apply other material necessary to ensure public safety.
 - 3. Finished Side to Outside – All fences and walls shall be oriented with the “good” or “finished” side facing outward (i.e. one side has visible support framing and the other does not) rather than facing the interior of the lot unless the fence or wall includes materials creating a “finished” side on both sides of the fence or wall. This provision may be varied by the Zoning Administrator in situations where the unfinished side will not be visible to the public or other properties, or where other unusual circumstances exist. This provision shall not preclude the placement of a shadow-box type fence.
 - 4. Uniformity of Construction – Fencing and wall segments located along a single lot side shall be of uniform height, material, type, color, and design and shall be uniform for the entire length of the fence or wall, except where a fence or wall segment transitions from one yard to another or from one height to another.

5. Height Restrictions

- a. In residential and mixed use zone districts developed with residential uses, fences and walls shall not exceed a height of four (4) feet in a required front yard and six (6) feet in a required side and/or rear yard. However, a fence or wall of not more than ten (10) feet in height may be installed within the rear and side yard of a residentially zoned property or mixed-use zoned properties developed with residential uses that abuts property zoned for or used and developed with commercial or industrial activities or where the residential zoned property abuts property developed with multi-family residential structures. Any fence installed in a front yard shall be of no greater than 50 percent opacity (that is, it shall obscure no more than 50 percent of the view into the land). If a fence is constructed on top of a retaining or other wall or berm, the combined height of the fence and wall shall not exceed the maximum height that would apply to a fence or wall alone, in relation to the grade on the highest side of the wall.
- b. In commercial districts, fences and walls shall not exceed a height of four (4) feet in a required front yard and ten (10) feet in a required side or rear yard. Any fence installed in the front yard of any lot in a commercial district shall be no greater than fifty (50) percent opaque. In industrial districts, fences and walls shall not exceed a height of six (6) feet in a required front yard and ten (10) feet in a required side or rear yard. If a fence is constructed on top of a retaining or other wall or berm, the combined height of the fence and wall shall not exceed the maximum height that would apply to a fence or wall alone, in relation to the grade on the highest side of the wall.
- c. No fence or wall exceeding six feet in height shall be placed or erected in any public utility or drainage easement or other public easement. Any fence or wall of six feet or less in height may be placed in the public utility and drainage easement or other public easement provided that the fence or wall will not disrupt the operations and function of the easement. If such fence or wall requires removal by the owner of the easement then such fence or wall may be removed by the owner of the easement. Replacement of any fence or wall removed from an easement shall be the responsibility of the property owner. The City may prohibit fences and walls in certain easements dependent upon the function of the easement. Replacement of existing fences and walls of less than six feet in height removed for maintenance and construction within public easements do not require a permit, if replaced in the same location prior to removal for maintenance of or construction in the easement.
- d. Fences or walls provided to meet the requirements outlined in Section 13.04, Transitional Bufferyard Design Standards, may be exempted from the location standards as necessary to meet the requirements of that section when approved as part of an overall landscape and bufferyard plan. A fence or wall may be placed within a required bufferyard and used to comply with opaque bufferyard requirements but shall not be permitted to reduce the required bufferyard design standards unless approved by the Planning Commission as part of an alternative bufferyard.
- e. The Zoning Administrator may approve driveway entry features, including, but not limited to, decorative columns and gates, at a height greater than the height specified in Section 12.01.020.C.5 a through c.

6. Maintenance Required – All fences and walls shall be maintained in good repair and in a safe and attractive condition, including but not limited to replacement of missing, decayed, or broken structural and decorative elements.
-
- D. Permits Required - Prior to the construction or erection of any fence or wall, the applicant shall first obtain a fence/wall permit complying with the designs standards herein and the building regulations adopted by the Building/Codes Department per Chapter 5, Article XIV, Gallatin Code of Ordinances.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

December 8, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

Ordinance No. O2012-53 of the City of Gallatin, Sumner County, Tennessee, amending Article 12, Section 12.01.020, Gallatin Zoning Ordinance pertaining to the fence and wall regulations.

SUMMARY:

The Planning Commission recommends approval of an Ordinance to amend Article 12, Section 12.01.020 of the Gallatin Zoning Ordinance, regulating the provisions for the design, placement and permitting of fences and walls. The proposed ordinance provides greater specificity pertaining to the types of fences and walls permitted in certain zoning districts when located adjacent to other districts and prohibits structural fences and walls in public utility and drainage easements. It also requires applicants for fences and walls to obtain zoning and building permits. This Zoning Code amendment was requested because of a recent decision by the Municipal Board of Zoning Appeals concerning a fence variance case.

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☐
Rejected ☐
Deferred ☐

Notes:

ORDINANCE APPROPRIATING FUNDS FOR COMPLETION OF
INFRASTRUCTURE IMPROVEMENTS IN THE HOME DEPOT SUBDIVISION

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$102,000 is hereby appropriated from surety proceeds received for completion of infrastructure in the Home Depot subdivision;

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$102,000 be appropriated from account number 110-35200, Forfeitures, to account number 110-41670-931-262, Home Depot;

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect on final passage, the public welfare requiring such.

PASSED FIRST READING: January 19, 2021.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY



October 28, 2020

Global Trade Client Services Team
JP Morgan Chase
300 South Riverside Plaza
Mail Code IL-1-0236
Chicago, IL. 60606-0236

**RE: Home Depot Subdivision - Plat 2004-26 - 21-383
Drawn Under Irrevocable Letter of Credit No #00346207
Formal Demand to Call Subdivision Letter of Credit for Home Depot**

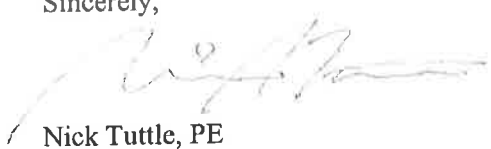
Certified Mail #7007 1490 0002 9001 5713

The City of Gallatin hereby makes formal demand to call the subdivision Irrevocable Letter of Credit for Home Depot and demands payment in the amount of \$102,000 to be drawn under JP Morgan Chase Bank Irrevocable Letter of Credit #00346207 for failure to complete required improvements as approved by the City of Gallatin. Enclosed is Resolution #2020-089 approved by the Gallatin Planning Department on September 28, 2020.

The City hereby certifies that the amount of \$102,000 to be drawn on Irrevocable Letter of Credit #00346207 is legally due and owing to the City pursuant to Gallatin Zoning Ordinance, Section 15.03.080, Surety Required, a copy of which is enclosed with this demand for payment. The amount represents the unpaid sum due to the City for Home Depot's failure to complete improvements as required by said section.

Funds should be mailed by certified mail to Gallatin City Hall, 132 West Main Street, Gallatin, TN 37066, to the attention of Marianne Mudrak, Planning Department.

Sincerely,


Nick Tuttle, PE
City Engineer

MM

Enclosures

cc: Lejuwaan, Randal J.
Susan High-McAuley, City Attorney
Deborah Straw
File #1-27-04C



Activity - Deposit Accounts

Report created: 11/30/2020 12:03:27 PM (ET)
 Account: [REDACTED] Checking • OPERATING ACCOUNT • [REDACTED]
 Date range: 11/25/2020 to 11/30/2020
 Transaction types: Selected transactions
 Detail option: Includes transaction detail
 Total by day: Includes totals by day within the selected date range
 Amount range: \$100,000.00 to \$150,000.00

[REDACTED] • Checking • OPERATING ACCOUNT • Current [REDACTED]

Post Date	Reference	Additional Reference	Description	Debit	Credit	Calculated Ending Balance
11/27/2020			INCOMING MONEY TRANSFER [REDACTED] /REC/HOMEDEPOTUSAINC SB LC00346207		\$102,000.00	Not available for this date
11/27/2020	Total Calculated Credits (1 item)				\$102,000.00	
11/30/2020	Totals			\$0.00	\$102,000.00	

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

January 12, 2021

DEPARTMENT: Engineering

AGENDA # 3

SUBJECT:

Ordinance Appropriating \$102,000 for Completion of Infrastructure Improvements in the Home Depot Subdivision

SUMMARY:

Attached is an Ordinance to appropriate funds to cover costs associated with the completion of infrastructure in the Home Depot Subdivision. Also attached is a copy of the LOC (Letter of Credit) Demand letter along with a report showing the deposit of those funds.

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE APPROPRIATING FUNDS FROM 2021 GENERAL OBLIGATION
BOND ISSUE IN THE AMOUNT OF \$11,112,853.25
AND \$700,000 FROM GENERAL FUND FOR CAPITAL PROJECTS

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum
of \$11,112,853.25 is hereby appropriated from proceeds of the 2021 GO bond sale, to the
following projects in amounts noted:

Downtown Parking Structure	\$1,500,000
Reimbursement to General Fund	\$2,000,000
Golf Irrigation System replacement	\$500,000
Roads	\$4,201,143.41
Smith Street widening	\$1,000,000
Sidewalks/Greenways/Multimodal	\$1,000,000
Town Creek flood improvements	\$800,000
Bond closing costs	\$111,709.84; and

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE,
that the sum of \$700,000 is hereby appropriated from the General Fund Unassigned Fund
Balance to Project number 204, Police and Fire Training facility in the Industrial Park; and

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE,
that this Ordinance shall take effect from and after its final passage, the public welfare
requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

Janaury 26, 2021

DEPARTMENT: **Finance**

AGENDA #

SUBJECT:
Ordinance to appropriate bond funds

SUMMARY:
Ordinance appropriating 2020/2021 GO bond funds

RECOMMENDATION:
approval

ATTACHMENT:

☐	Resolution
☒	Ordinance

☐	Correspondence
☐	Contract

☐	Bid Tabulation
☐	Other

Approved	☒
Rejected	☐
Deferred	☐

Notes:

ORDINANCE APPROPRIATING \$127,769 FROM
PROJECT WOOLHAWK FOR BUILDING CODES DEPARTMENT EXPENSES

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$127,769 is hereby appropriated from Donations from Business - Woolhawk, account number 110-36710-256, to the following Building Codes Accounts for the expenses related to Project Woolhawk:

\$44,185 to 11041990-111 (Salaries)

\$7,324 to 11041990-141 (FICA)

\$6,444 to 11041990-142 (Health Insurance)

\$4,071 to 11041990-143 (Retirement)

\$258 to 11041990-145 (Life Insurance)

\$452 to 11041990-149 (Disability)

\$2,500 to 11041990-319 (Office Supplies)

\$1,500 to 11041990-326 (Uniforms)

\$6,035 to 11041990-593 (Discount Credit Card)

\$45,000 to 11041990-941 (Transportation Equipment) and

\$10,000 to 11041990-947 (Office Equipment); and

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE,
that this Ordinance shall take effect upon passage, the public welfare requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

APPROVED AS TO FORM:

CONNIE KITTRELL
CITY RECORDER

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

JANUARY 26, 2021

DEPARTMENT: **Building Codes**

AGENDA #

SUBJECT:

Appropriating funds from Project Woolhawk for Building Codes expenses

SUMMARY:

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved x
Rejected
Deferred

Notes:

AN ORDINANCE AMENDING GALLATIN MUNICIPAL CODE CHAPTER 5, BUILDINGS AND BUILDING REGULATIONS, ARTICLE XIV, FENCES

WHEREAS, it is deemed in the public interest to amend the Gallatin Municipal Code from time to time; and

WHEREAS, the Mayor and City Council have recommended that the City of Gallatin Municipal Code be amended regarding the parameters of adding fences to properties,

NOW, THEREFORE, BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the Gallatin Municipal Code, Chapter 5, Buildings and Building Regulations, Article XIV, FENCES be amended as follows:

The title to Article XIV currently read Fences. The title shall be amended by adding the words “and Walls” to the title such that it reads **ARTICLE XIV. FENCES AND WALLS.**

Section 5-209 Definitions shall be amended by adding the following subsections:

- (3) “Wall” shall mean a wall which supports only vertical loads in addition to its own weight.
- (4) “Retaining wall” shall mean a wall not laterally supported at the top that resists lateral soil load and other imposed loads”

The title to Sec. 5-291 currently reads Approval process for fences. The title shall be amended by adding the words “and walls” such that it reads **Sec. 5-291 Approval process for fences and walls.**

Section 5-291 shall be further amended by deleting the section in its entirety and replacing it with the following:

“An application accompanied by a site plan must be submitted to the Planning Department to be reviewed for compliance with adopted codes and Gallatin Zoning Ordinance.”

Sec. 5-292 Permits and Fees shall be amended by deleting the section in its entirety and replacing it with the following:

- (1) For fences or walls less than 7 feet in height and for retaining walls 4 feet or less in height, a permit from the Building Department is not required.
- (2) For fences or walls 7 feet or more in height and for retaining walls more than 4 feet in height, a permit application with accompanying plans must be submitted to the Building Department for review.
- (3) All fences and walls 7 feet or more in height and retaining walls more than 4 feet in height will require stamped engineered design plans.
- (4) Permit fees will be negotiated fees based on the project size and complexity.

Sec. 5-293. Inspections shall be amended by deleting the section in its entirety and replacing it with the following:

“All fences and walls 7 feet or more in height and retaining walls more than 4 feet in height will require third party inspections by a State of Tennessee licensed engineer. All inspection reports including final inspections must be submitted to the Building Department.”

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect upon passage, the public welfare requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

JANUARY 26, 2021

DEPARTMENT: **Building Codes**

AGENDA #

SUBJECT:

Amending GMC Chapter 5, Buildings and Building Regulations, Article XIV, Fences in order to reflect changes in adopted codes and Gallatin Zoning Code.

SUMMARY:

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved x
Rejected
Deferred

Notes:

RESOLUTION NO. R2102-11

**RESOLUTION TO AUTHORIZE THE GALLATIN FIRE DEPARTMENT TO
APPLY FOR THE ASSISTANCE TO FIREFIGHTERS (AFG) GRANT**

WHEREAS, the Gallatin Fire Department requests authority to apply for the Assistance to Firefighters (AFG) grant to purchase and replace outdated firefighting turnout gear (PPE); and

WHEREAS, the estimated costs for the firefighting turnout gear (PPE) replacement total \$360,000.00, the AFG grant would provide \$324,000.00 which is 90% of the total costs, and the City of Gallatin must match 10% of the costs, for the remaining \$36,000.00; and

WHEREAS, the firefighting turnout gear purchase will be contingent upon approval of the City's AFG grant application.

NOW THEREFORE BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the City Council hereby authorizes the Gallatin Fire Department to apply for the AFG grant to purchase and replace outdated firefighting turnout gear (PPE); and

BE IT FURTHER RESOLVED that if awarded the AFG grant, the City of Gallatin is committed to matching the requested funds of \$36,000.00, which represents 10% of the total project; and

BE IT FURTHER RESOLVED, that the City will make necessary allocations in the budget to fund these expenditures; and

BE IT FURTHER RESOLVED, that this resolution shall take effect from and after its final passage, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY